

		shows that the moving papers were properly served on all parties, the motions will be GRANTED. The orders relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the clients and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice
105	Beltran vs. Universal Care, Inc. 22-01269141	Motion to Lift Stay and Restore Case Plaintiff Dr. Robert Beltran, M.D. moves for an order lifting the stay imposed when the Court ordered arbitration and restoring the case to the active civil docket. The motion is GRANTED. “In an employment or consumer arbitration that requires, either expressly or through application of state or federal law or the rules of the arbitration provider, that the drafting party pay certain fees and costs during the pendency of an arbitration proceeding, if the fees or costs required to continue the arbitration proceeding are not paid within 30 days after the due date, the drafting party is in material breach of the arbitration agreement, is in default of the arbitration, and waives its right to compel the employee or consumer to proceed with that arbitration as a result of the material breach.” (CCP § 1281.98(a)(1).) In Hohenshelt v. Superior Ct., the California Supreme Court held that the penalties for failure to make timely payments of arbitration fees under Section 1281.98 could be subject to relief under certain circumstances of good faith conduct and excusable neglect. More specifically, a “drafting party can avoid forfeiture of its right to arbitration by showing that the delay was excusable under section 473, Civil Code section 3275, or Civil Code section 1511, the background principles that generally apply to other contractual obligations.”

(Hohenshelt v. Superior Ct. (2025) 18 Cal. 5th 310, 343.) The Court cautioned, however, that “[w]hen a party breaches its contractual obligations willfully, fraudulently, or with gross negligence, it cannot escape the consequences by pointing to a lack of harm to the other party.” (Id. at 346.)

Here, the parties were ordered to arbitration of this employment dispute on 9/25/23 pursuant to a joint stipulation. (ROA 37.) The arbitration agreement requires the employer to pay all fees and expenses of the Arbitrator. (Pl. Exh. 1 at ¶ 3.) The parties do not dispute that Defendant paid a non-refundable fee of \$2,000 to JAMS on 1/29/24 and a retainer fee of \$12,000 on 4/17/24. (Oppn at 2:12-16.)

On 12/13/25, JAMS sent an invoice for an arbitration reservation of 8/17-8/21/26. The invoice, which was dated 12/12/25, was due upon receipt. (Pl. Exh. 2; Deft. Exh. C.) Defendant does not deny that the invoice was never paid. Sixty-one days later, on 2/11/26, another invoice was issued for the same amount. (Pl. Exh. 3.) Defendant does not deny that it never paid this invoice either, although it contends that the invoice was reversed on 2/25/26. (Deft. Exh. D.)

On 4/18/26, another invoice was issued, again for the same amount and also due upon receipt. On 5/12/26 (24 days after this latest invoice issued), Plaintiff filed the instant motion. JAMS suspended administration of the matter on 5/28/26 at Plaintiff’s request. (Oppn at 3:24-4:1; Reply at 3:24-25.) Defendant filed its opposition to this motion on 7/15/26, which was more than 30 days after the 5/12/26 invoice issuedp and made no indication that the invoice had been paid. Plaintiff’s reply also confirms that the fee was never paid. (Reply at 3:21-23.)

In addition to failing to dispute that the invoices were not paid within 30 days, Defendant makes no representation that has any intention of paying the fee. Rather, Defendant merely asks the Court to continue

		the stay until the parties complete their scheduled mediation on 9/15/26. Defendant offers perfunctory excuses for failing to pay, in that the case transitioned between defense firms and amongst different attorneys within those firms; and the insurance carrier representative went out on leave in April 2026. (Oppn at 3:2-3:12.) However, no declaration is offered to support any of these arguments, nor are any specifics given explaining in detail how or why the payment was not made. Thus, it appears to the Court that Defendant’s failure to pay was willful. (See People v. Bollaert (2016) 248 Cal. App. 4th 699, 710 (“[T]he word ‘willfully’ as generally used in the law is a synonym for ‘intentionally,’ . . . and ‘implies no evil intent[,] ‘it implies that the person knows what he is doing, intends to do what he is doing and is a free agent.’”).) Accordingly, the motion is GRANTED. The stay is lifted. Sanctions shall be addressed by way of separate motion to be brought by Plaintiff pursuant to CCP §1281.98(c). (See also CCP §1281.99.) Plaintiff to give notice.
106	Bunker Hill Apartments, LLC vs. GMS Group Inc. 25-01505195	Motion for an Order Discharging and Dismissing Escrow from Case, and Order Escrow to Deposit Interpleaded Funds Defendant La Costa Escrow, Inc. (“La Costa”) seeks to interplead funds in the amount of \$958,843.27, less La Costa’s attorney fees and escrow fees, and an order discharging La Costa from liability and dismissing it from this action. This action involves the sale of real property by plaintiffs Bunker Hill Apartments LLC and Tony Holder (“Plaintiffs”) to GMS Group Inc. (“GMS”). La